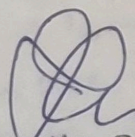


OFFICE OF THE CANTONMENT BOARD, NASIRABAD (RAJ.)

OFFICE ORDER No. 115 DATED 18/7/2008

Board has appointed Central Information Officer under the provision of Right to Information Act, 2005.

1. C.I.O. should ensure that all reference received under the said Act should be disposed of according the provision of Right to Information Act, 2005 as well Rules framed under the said Act. A copy of relevant rules has also been made available to C.I.O. Payment in connection of different matters as laid under the right to information (Regulation of fee and cost) Rules 2005 be charged.
2. All such reference should be entered in a register and Journey of the particular reference be recorded in the said register with endorsement of payment.
3. If any information pertains to other branch of the Board Office, Branch heads be asked to furnish information with in given time so that C.I.O. may complete the matter with in prescribed time, laid down under the Right to Information Act, 2005.
4. All concerned branch heads should ensure to furnish informations to C.I.O. with in time frame. Non-compliance of these orders, individual concern will be liable for disciplinary action.


Chief Executive Officer,
Nasirabad Cantt.

To,
Office-Supdt.,
Cantt. Board Nasirabad

Copy to:-

All Section Heads.

Date 3-9-2005

The Estate Officer
Cantonment
Nasirabad

Subject:- Reg. House No. 532 and 533 (Narain s/o Gordhan)

Sir

Kindly refer to my applications and hearing dates in above properties. I draw your kind attention to a mis-classification of my property No. 532 (area 405 sq. ft.) now lying open land adjoining to my house No. 533 (area 1120 sq. ft.). My property bearing No. 532 as per books is classified as B(4) building site which is wrongly shown. I respectfully refute the B(4) classification ^{by opening of} entry in Cantt. books reg. No. 532. The mistake erroneously cropped up because the information was not collected from the owner in 1930s while conducting survey. The owner was far away with family, locking his house at Nasirabad serving his Rly job at Bikaner while survey conducted. This was a cause without which this mis-classification would not have been caused as such. Property No. 532 (area 405 sq. ft.) therefore suffered very badly under B(4) classification by wrong reporting during survey. My revered father urged the administration several times with reminders, to rectify error by transferring & restoring 405 sq. ft. land of No. 532 to its original B(3) class (i.e. identical to my house No. 533 situated adjoining) by recasting necessary correction in books to avoid ambiguity. Relevant documents in proof of title reg. property No. 532 belonging around 1920s already submitted 50 years way back, by my revered father late Narain s/o Gordhan. Proposed construction plans were put up as per necessity several times for sanction on 532 land but remained uncommunicated. The ruins of old dilapidated kuchha dwelling house on 532 washed away gradually by rain storms over the years. Eventually premises of 532 reduced to open land. Safeguarding & stopping trespass through our premises from road side, kuchha-pucca barbed wire fencing/wall etc. was necessarily provided. The Cantt. Board validating the title of property No. 532, the assessment & imposition of the house tax started which is being paid regularly since point of beginning to date against cantonment's demand notice, (details of tax receipts also enclosed along proposed construction plans in 1967). Nil Tax is outstanding upto March 2006 against both properties 532 & 533. Again administration is highly requested to look into the matter seriously for transfer & regularise long pending misclassification of property No. 532 i.e. from B(4) to class B(3). Several requests followed with reminders are on record file consequently higher authority has issued an order to maintain a status quo position. However it cannot prevail indefinitely. Therefore it has to be resolved finally & justifiably to bring an end to this case pending over half a century.

The case does not pertain to house No. 533 at all. The Cantt. overseer's report refers to encroachment, ~~rather it is encroachment~~ on 532 (survey No. 280/751) land which is basically not encroachment, rather it could be seen in the light of unauthorized construction under constraints.

I pray with regards to your honour for needful justice at an early date, thanking you highly.

Yours Faithfully,

R. C. Sharma

(R.C. SHARMA) 3-9-2005

Address 1093A Balupura Rd. Adarsh Nagar AJMER

To

REMINDER

Dated

The Estate Officer
The Executive Officer
Cantonment Board Office
Nasirabad (Rajasthan)

Sub: - Notice under section 5A (2) PP Act 1971

Ref: - Your No.87 dated 3.12.1999.

Sir,

The above notice to undersigned refers to the **open land measuring 701sft shown yellow in site plan. This 701sft alleged land is actually B (3) land, is an integral part of HNos. 533 & 532 both** for over 80 years in Ramdayal mohalla Nasirabad.

Regrettably 701sft land has been wrongfully stated as **B (4) govt. lands in above notice vide survey number 280/4485**. This is unfair **because survey number and type of land quoted vide notice, are both erroneous** and to prove **the wrong** following facts are furnished for consideration, examination, site inspection and rectification.

Actual survey numbers, land areas, type of land & house tax details etc. are given below.

House No.	Survey No.	Legal land Area	Classification of land	House Tax
533	280/752	1120 sft	B (3) Old Grant	Paid Up To date
532	280/751	405 sft	B (3) Old Grant	Paid Up To date
Total land of both houses = 1525 sft				

HN.533 & 532 located **on old grant B (3) land** in Ramdayal Mohalla Nasirabad is bound **as per cantonment survey plan civil area** at site as mentioned below

On the North by: --Gully
On the South by: --Road
On the East by: --H.N. 534
On the West by: --Rasta

1120sft is total land area of HN.533 and 405sft is total land area of HN.532 **deteriorated** several decades ago leaving its building site now. **701sft alleged land area is an indispensable requisite, integral part of both HN.533 & 532 in conformity with their legitimate assigned areas since origin is evidentiary fact metrically vide item (i) , (i a) and (ii) below**. The aggregate land area of both houses is 1525sft. Beyond this area, there is no vacant land of any type exists, **except public Rasta, gully and road** as shown in above schedule.

- (i) **824sft is built up area of HN.533, on its legal area 1120sft.**
- (i a) **296sft is open chabutra of HN. 533 next to built up area, is part of legal area 1120sft.**
- (ii) **405sft is legal area of building site of deteriorated kutchra HN.532, next to chabutra.**

P.T.O.

The authentic survey numbers of HN.533 & 532 are actually 280/752 & 280/751 according to survey plan, and their category of land is same as B (3) and not 280/4485 (B4) as quoted in the notice. The executive officer is regularly charging assessed house tax on both houses throughout by demand notices is implied that HN.532 & 533 possess **B (3) land** and free from encumbrances by title, possession and tax payment etc. on joint area 1525sft of both houses over 80 years.

My late father Sh. Narain s/o Gordhan submitted all relevant documents to your office in his life time and the same have been seen intact by the undersigned while going through the office file entitled HN.532/533 "Narain s/o Gordhan"

The overseer verified himself on my request, the land category of both houses 533 & 532 on cantonment survey plan, and admitted that said **land is B (3) and not B (4)**, and as such assured **needful withdrawal of the said action at the earliest.**

I request your honour to grant acquittal/ withdrawal/dismissal as admissible to this case of year 1999 pending over 9 years. Sir I'm senior citizen humbly pray that enough delay already passed mostly due to abortive dates. An early decision is therefore requested in view of my old age and health conditions at 75 kindly to relieve me from mental tortures and tensions as such.

Thanking you highly.

Yours sincerely.

(R.C. Sharma)

S/o Late Narain Gordhan

1093 A, Balupura Road, Adarsh Nagar,

Ajmer (Rajasthan) Pin 305001

Encls. Site Plan